CRIMIMAL CODE ORDINANCE

ON

GENERAL OFFENSE

CHAPTER	TITLE
ONE	ORDINANCE AUTHORITY AND PENALTIES
TWO	PUBLIC ORDER AND SAFETY
THREE	PROPERTY
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ORDINANCE NO 1980 – 0 -1

AN ORDINANCE CREATING A CRIMINAL CODE FOR GENERAL OFFENSES PERTAINING TO PUBLIC ORDER AND SAFETY, PUBLIC MORALS, MINORS, NUISANCES, ANIMAL CONTROL: MAKING COMMISSION OF THESE OFFENSES UNLAWFUL; AND REPEALING ALL ORDINACES IN CONFLICT THEREOF:

BE IT ORDAINED BY THE GOVERNING BODY OF THE MUNICIPALITY OF CUBA NEW MEXICO:

CHAPTER ONE

1-1-1 TITLE: This Ordinance (Chapter One, Sections 1-1-1 through 1-1-8; Chapter Two, Sections 2-1-1 through 2-1-23; Chapter Three, Sections 3-1-1 through 3-1-9; Chapter Four, Sections 4-1-1 through 4-1-4; Chapter Five, Sections 5-1-1 through 5-1-9; Chapter Six, Sections 6-1-1 through 6-1-6; Chapter Seven, Sections 7-1-1 though 7-1-9) is called and may be cited as the "Criminal Code Ordinance on General Offenses" for the municipality of Cuba.

1-1-2 DEFINITIONS AND RULES OF CONSTRUCTION: In the construction of the Criminal Code Ordinance, the following definitions and rules of construction shall be observed unless it shall be otherwise expressly provided in any section of this ordinance, or unless inconsistent with the manifest intent of this ordinance:

A. "governing body" means the city council or city commission of a city, the board of trustees of a town or village.
B. "municipality" means any incorporated city, town or village, whether incorporated under general at, special act or special charter.
C. "public ground" means any real property owned or leased by a municipality.
D. "street" means any thoroughfare that can accommodate pedestrian or vehicular traffic, is open to the public and is under the control of the municipality,
E. "mayor" means the chief executive officer of municipalities having the mayor-council form of government.
F. "accused" means any person charged with the violation of any ordinance of the municipality that imposes a penalty.
G. "defendant" means any person accused of with the violation of any ordinance of the municipality that imposes a penalty.
H. "person" means any individual, estate, trust, receiver, cooperative, association, club, corporation, company, firm, partnership, joint venture, syndicate or other entity.
I. "police officer", "law enforcement officer", "peace officer" or "Officer" means any full-time salaried officer who by virtue of his office or public employment is vested by law with the duty to maintain the public peace.

J. "public officer" means any elected or appointed officer of the state or any of it political subdivisions, serving with or without remuneration of his services.
K. "public employee" means any person receiving remuneration for regular services rendered to the state or any of its political subdivisions.
L. "another", "other" means any other human being or legal entity, whether incorporated or unincorporated, including the United States, the State of New Mexico or any subdivision thereof.
M. "anything of value" means any conceivable thing of the slightest value tangible or intangible, movable or immoveable, corporeal or incorporeal, public or private. The term is not necessarily synonymous with the traditional legal term "property".
N. "official proceeding" means a proceeding heard before any legislative, judicial, administrative or other governmental agency or official authorized to hear evidence under oath, including any referee, hearing examiner, commissioner, notary or other person taking testimony or depositions in any proceeding,
O. "lawful custody or confinement" means the holding of any person pursuant to lawful authority, including, without limitation, actual or constructive custody of prisoners temporarily outside a penal institution, reformatory, jail, prison farm or ranch.
P. "battery" means the unlawful, intentional touching or application of force to the person of another, when done in a rude, insolent or angry manner.
Q. "carrying a deadly weapon" means being armed with a deadly weapon by having it on the person, or in close proximity thereto, so tat the weapon is readily accessible for use.
R. "prostitution" means knowingly engaging in offering to engage in sexual intercourse for hire.
S. "bet" means a bargain in which the parties agree that, dependent upon chance, even through accompanied by some skill, one stand to win or lose anything of value specified in the agreement.
T. "disorderly conduct" means engaging in violent, abusive, indecent, profane, boisterous, unreasonably loud or otherwise disorderly conduct which tends to disturb the peace, or maliciously disturbing, threatening or, in an insolent manner, intentionally touching any house occupied by any person.
U. "minor" means any unmarried person who has not reached his eighteenth birthday, except that under application of the Alcoholic Beverage Control Act, "minor" means any person under twenty-one years of age.
V. "he" or "him" or "she" or "her" shall not be construed to be mandatory distinctions of gender if not expressly stipulated.
W. "shall" is mandatory and "may" is permissive.

1-1-3 AMENDMENTS: Any amendments to this ordinance shall be adopted as ordinances as required by state law, and when passed in such form as to indicate the intention to make the same a part thereof, shall be incorporated into this ordinance so that reference to it as "the Criminal Code Ordinance on General Offenses:' shall be understood as including such amendments.

1-1-4 PENALTY: Any person found guilty of violating any of the provisions of this ordinance shall be fined not more than three hundred dollars ($300) or imprisoned for a period of not more than ninety days, or by both such fine and imprisonment, and each day this ordinance is violated shall constitute a separate offense; provided, however, that if a specific penalty is provided there fore any particular and individual section of this ordinance, then the specific penalty shall prevail.

1-1-5 SEVERABILITY: Should any section, paragraph, clause or provision of this ordinance, for any reason, be held to be invalid or unenforceable, the invalidity or unenforceability of such section, paragraph, clause or provision shall not affect any of the remaining provisions of this ordinance.

1-1-6 REPEALER: All ordinances or resolutions or parts thereof, inconsistent herewith are hereby repealed to the extent of only of such inconsistency. This repealer shall not be construed to revive any ordinance or resolution, or part thereof, heretofore repealed.

1-1-7 This ordinance shall be in full force and effect five days after its adoption, approval and publication as provided by law.

Municipality of Cuba

Augustine Eichwald

Mayor

ATTEST:

Florence McCoy

City Clerk

The above and foregoing Ordinance was duly presented, approved unanimously and adopted at a Regular Meeting of the Governing Body of the municipality of Cuba, New Mexico, held on the 9th day of January 1980.

Augustine Eichwald

Mayor

ATTEST:

Florence McCoy

CHAPTER TWO

PUBLIC ORDER AND SAFETY

2-1-1 Assault
2-1-2 Battery
2-1-3 Trespass
2-1-4 Prowling
2-1-5 Disturbing the Peace
2-1-6 Unreasonable Noise
2-1-7 Disorderly Conduct
2-1-8 Intoxication
2-1-9 Unlawful Assembly
~~2-1-10 Vagrancy~~
2-1-11 Obstructing Movement
2-1-12 Removal of Barricades
2-1-13 Deadly Weapons
2-1-14 Failure to Report Treatment of Wounds
2-1-15 Propelling of Missiles
2-1-16 Possession of Burglary Tools
2-1-17 Possession of Fireworks
2-1-18 False Alarms
2-1-19 False Reports
2-1-20 Interference With Officers
2-1-21 Impersonating An Officer
2-1-22 Unauthorized Use of Certain Words and Insignia
2-1-23 Escape of Prisoners

2-1-1 ASSAULT: It is unlawful for any person to commit a battery upon the person of another, nor shall any person, by any unlawful act, threat or menacing conduct, cause another person to believe he is in danger of receiving an immediate battery, nor shall any person, by the use of insulting language toward another, impugn his honor, delicacy or reputation.

2-1-2 BATTERY: It is unlawful for any person to beat, strike, wound, inflict violence or apply force to the person of another, nor shall a person intentionally touch or apply force to the person of another in a rude, insolent, angry or hostile manner except in connection with an exhibition duly authorized and licensed under law, or in lawful self defense, or in the line of duty as a duly authorized police officer as circumstances warrant.

2-1-3 TRESPASS: It is unlawful, with malicious intent; to enter or remain upon the property of another knowing that consent to enter or remain has been denied or withdrawn by the owner or occupant thereof.

2-1-4 PROWLING: It is unlawful to lurk, lie in wait or be concealed upon the property of another without lawful business with the owner or occupant thereof.

2-1-5 DISTRUBING THE PEACE: It is unlawful for any person to disturb or aid in disturbing the peace of other by violent, tumultuous, offensive, or obstreperous conduct, and no person shall knowingly permit such conduct upon any property owned by him or under his control or supervision.

2-1-6 UNREASONABLE NOISE: It is unlawful for any person to make, continue or cause to be made, any loud or unusual noise which either annoys, disturbs, injures or endangers the comfort, repose, health, peace or safety of others. Unlawful noise includes but shall not be limited to the following:

a. Horns and Signal Devices. The sounding of any horn or signaling device of any automobile, motorcycle, truck or other vehicle on any street or public place except as a danger warning, the creation by means of any such signaling device of any unreasonable, loud, or harsh sound, the sounding of such devices for any unnecessary and unreasonable period of time other than by accident or mechanical, electrical or other difficulty or failure, and the use of any such signaling device where traffic is help up.

b. Radios and Phonographs. The use or operation of any radio, phonograph or other sounding machine in such a manner as to disturb the peace and quiet of neighbors.

c. Loud-Speakers and Amplifiers Used for Advertising. The use or operation or permitting to be played, used, or operated any radio, receiver set, musical instrument, phonograph, tape recorder, loud-speaker, sound amplifier or other machine or device or the production or reproduction of sound which is cast upon the public streets for the purpose of commercial advertising or attraction the attention of public in any residential area except with the proper permit elsewhere prescribed.

d. Yelling or Shouting. Yelling, shouting or creating other loud noises which annoy or disturb the quiet, comfort or repose of persons in any office, dwelling, hotel or residence, or of any persons in the vicinity.

e. Animals. The keeping of any animals which, by causing frequent or continuous noise, shall disturb the comfort or repose of any persons of the vicinity.

f. Schools, Courts, Churches, Hospital. The creating of any excessive noise on any street adjacent to any hospital, school, institution of learning, church or court which interferes with the workings if such institution, or which disturbs or annoys patients in a hospital.

g. Pounding. The pounding or hammering on any metal object or thing except inside a building or in connection with the construction or erection of a building.

2-1-7 DISORDERLY CONDUCT: Disorderly conduct is unlawful. A person is guilty of disorderly conduct if, with a purpose to cause public danger, alarm, disorder or nuisance her willfully:

a. creates a disturbance of the public order by an act of violence or by any act likely to produce violence; or

b. engages in fighting, or in violent, threatening or tumultuous behavior; or
c. makes any unreasonably loud noise; or
d. addresses abusive language or threats to any person present which creates a clear and present danger of violence; or
e. causes likelihood of harm or serious inconvenience by failing to obey a lawful order or dispersal by a police officer, where three or more persons are committing acts or disorderly conduct in the immediate vicinity; or
f. damages, befouls or disturbs public property or property of another so as to create a hazardous, unhealthy or physically offensive condition; o
g. commits a trespass on residential property or on public property. Trespass for the purpose of this ordinance shall mean:
    1. Entering upon, or refusing to leave, any residential property of another, either where such property has been posted with "No Trespassing" signs or where immediately prior to such entry, or subsequent thereto, notice is given by the owner or occupant, orally or in writing, that such entry, or continued presence is prohibited.
    2. Entering upon, or refusing to leave, any public property in violation of regulations promulgated by the official charged with the security, care or maintenance of the property and approved by the governing body of the public agency owning property, where such regulation have been conspicuously posted or where immediately prior to such entry, or subsequent thereto, such regulations are made known by the official charged with the security, care or maintenance or the property, his agent or police officer.
h. makes a telephone call with intent to annoy another, whether or not conversation ensues; or
i. solicits a sale of merchandise or service by use of the telephone when such solicitation has not been invited by the person solicited, or conducts a sales campaign or promotion over the telephone without consent of the person called; or
j. assembles together with two or more persons with intent to do any unlawful act with force or violence against the person or property of another, and who makes any overt act to carry out such unlawful purpose; or
k. disturbs, threatens, or in any insolent manner intentionally touch any house or vehicle occupied by any person.

2-1-8 INTOXICATION. It is unlawful for any person to be in an intoxicated condition in any public place whether as a result or the use of alcoholic beverages, narcotics, drugs, fumes, stimulants, depressants, glues or cements.

2-1-9 UNLAWFUL ASSEMBLY. It is unlawful for three or more persons to assemble with intent to do any unlawful act by force or violence against the person or property of another or to make any overt act to carry out such unlawful purpose.

~~2-1-10 VAGRANCY. The following acts comprise the crime of vagrancy and their commission is unlawful:~~

~~a. Being without visible or lawful means of support or although possession the physical ability, failing or refusing to actively seek employment.~~

~~b. Loitering in or about or on any street, land, avenue, alley or any other public place, at any public gathering or assembly, in or around any street, shop, business or commercial establishment or any private property or place without lawful business there.~~

~~c. Loitering about or upon any public, private or parochial school grounds or building either on foot or in or on any vehicle without lawful business there.~~

~~d. Wandering abroad and occupying, lodging or sleeping in any vacant or unoccupied barn, house, car, shed, shop or other building or structure or in any automobile, truck, railroad care or other vehicle without owning the same or without the permission of the owner or person entitled to possession thereof or sleeping in any vacant lot.~~

~~e. Wandering abroad and begging from door to door to private houses or commercial business establishments or placing one self in or upon any public way or public place to beg.~~

2-1-11 OBSTRUCTION MOVEMENT. It is unlawful to hinder, annoy or molest persons passing along any street, sidewalk, crosswalk or other public way, or to loiter, sit or stand around the entrance of any church, theater, public building, or other place of public assemblage in any manner so as to unreasonably obstruct such flow or to place or erect upon any public way an obstruction of any type except temporary barriers or warning signs placed for the purpose of safeguarding the public against any hazard.

2-1-12 REMOVAL OF BARRICADES It is unlawful to remove, destroy or interfere with any barrier, guard or light placed before or in any dangerous place near the streets, sidewalks or other public ways of the city for the purpose of warning or has ceased and temporary removal to allow the passage of a vehicle with immediate subsequent replacement shall not be considered unlawful.

2-1-13 DEADLY WEAPONS.

a. Carrying of Deadly Weapons. It is unlawful to anywhere carry a concealed, loaded firearm or other weapon capable or producing death or great bodily harm including, but not restricted to, any types of daggers, brass knuckles, switch blade knives, bowie knives, poniard, butcher knives, dirk knives, chains, can openers, ice picks and all such weapons with which dangerous cuts or punctures can be inflicted, including sword canes and any kind of sharp pointed case, also slingshots, bludgeons or any other weapon with which dangerous wounds can be inflicted, except in a person's residence or on real property belonging to him as owner, lessee, tenant or licensee or in a

private automobile or other private means of conveyance for lawful protection of one's own person or property vehicle traveling or for other lawful purposes.

b. Discharge of Firearms. It is unlawful to discharge within the municipality limits any pistol, revolver, rifle or shotgun which may be used for the explosion of cartridges, or any gas-operated gun or any device used for propelling missiles or any slingshot or missile propelling device, or any bow made or the purpose of throwing or projecting missiles of any kind by any means what so ever, whether any instrument is called by any name set forth above or by any other name; provided that this section has no application in cases involving the discharge of a firearm for lawful purposes.

c. Air and B-B Guns. It is unlawful for anyone to shoot any air rifle, air gun or B-B gun. Parents who permit the violation of this section shall be deemed guilty of a violation of Section 5-1-7.

d. Exception for Police Officers. The provisions set forth above shall not be construed to forbid police officers from carrying, wearing or discharging such weapons as shall be necessary in the proper discharge of their duties.

e. Exposing Others to Danger. It is unlawful to endanger the safety of another or his property by using a firearm or other deadly weapon in a negligent manner or to carry a firearm while under the influence of any intoxicant or narcotic or to sell, loan or furnish any deadly weapon to persons under the influence of any intoxicant or narcotic or to any incompetent person.

f. Prohibited Weapons. It is unlawful to manufacture, cause to be manufactured, possess, display, offer, sell or lend any knife which has a blade which open automatically by hand pressure applied to a button, spring or other device or any knife having a blade which opens, falls or is ejected into position by the force of gravity or by any outward or centrifugal thrust or movement.

g. Sales to Minors. It is unlawful to give, sell, trade, barter or exchange for anything of value any deadly weapon, air rifle, air gun, or B-B gun, or ammunition for any firearm to any person under the age of 18 years provided that this section shall not be construed to prevent any parent or legal guardian from purchasing firearms or ammunition for his child or ward.

h. Forfeiture of Deadly Weapons. Every person convicted or the violation of this code shall forfeit to the municipality any weapons involved in the violation.

i. Disposition of Forfeited Weapons. Every police officer upon making an arrest and taking a weapon used in the violation of any section of this code shall deliver the same to the chief of police to be held by him until judgment is entered for the offense and upon the finding of guilt the weapon shall be disposed of as provided in Section 3-55-1 NMSA 1978.

2-1-14 FAILURE TO REPORT TREATMENT OF WOUNDS. It is unlawful for any physician, surgeon or other practitioner of the healing arts licensed by the State of New Mexico to fail to immediately report to the municipal police department his treatment of a person in the municipality for a wound inflicted by a deadly weapon of any kind.

2-1-15 PROPELLING OF MISSILES. It is unlawful for any person to shoot, sling or throw any stone, rock or other propellant, missile or substance in any manner as to be reasonably likely to cause injury to any person or property.

2-1-16 POSSESSION OF BURGLARY TOOLS. It is unlawful to possess any lick pick, skeleton key or key to be used with a bit or bits, jimmy, sledge hammer, pry bar, cold chisel, dynamite, nitroglycerine, blasting caps, or any other burglary instrument or instruments commonly used by burglars unless such possession is for a lawful purpose.

2-1-17 POSSESSION OF FIREWORKS

a. Unlawful Acts: It is unlawful to manufacture, sell, offer to sell, own, possess or discharge any firecracker, Roman candle, sky rocker, torpedo, bomb, blank cartridges or any other type or form of explosive commonly known as fireworks within the municipal limits unless such item has been declared by the State Fire Marshall as not being dangerous to persons or property.

b. Exclusions: The term "fireworks" shall not include toy pistols, toy canes, toy guns or other devices in which paper caps containing twenty-five hundredths (25/100) grains or less of explosive compound are used, providing they are so constructed that the had can not come in contact with the cap when in place for use, and toy pistols which contain less than twenty-hundredths (20/100) grains of explosive mixture, the sale and use of which shall be permitted at all times.

c. Public Display. Nothing herein contained shall be held to apply to or prohibit any municipal or civic organization from sponsoring and conducting in connection with any public celebration, an officially supervised and controlled fireworks display.

2-1-18 FALSE ALARMS. It is unlawful for any person to make, turn in or give a false alarm of fire or of need for police or ambulance assistance, or to interfere with the proper functioning of an alarm system, or to aid or abet the commission of such an act.

2-1-19 FALSE REPORTS. It is unlawful for any person to maliciously make or file with the police department any false, misleading or unfounded report or statement concerning the commission or alleged commission of any crime.

2-1-20 INTERFERANCE WITH OFFICERS. It is unlawful to resist, abuse, molest, hinder, obstruct or refuse to obey or assist when called upon to do so, any police officer, fireman, emergency medical personnel or judge while in the discharge of his duty.

2-1-21 IMPERSONATING AN OFFICER. It is unlawful for any person other than a duly commissioned police officer to wear or carry the uniform, apparel, badge, identification card or other insignia of office, the same, similar or colorable imitation of the adopted and worn or carried by duly commissioned police officers

unless acting in the course of regular business and with the permission of the municipality, or, without authority, to exercise or attempt to exercise the functions to pretend to be, a peace officer or judge.

2-1-22 UNAUTHORIZED USE OF CERTAIN WORDS AND INSIGNIA. It is unlawful to display on any vehicle or sign the words "police", "police department", "fire department" or words or insignia of similar import without the authority of the municipality, provided that nothing contained herein shall apply to any state or county vehicle.

2-1-23 ESCAPE OF PRISONERS.

a. Escape from Jail or Custody. It is unlawful for any person, while a prisoner or the municipality or otherwise in the custody of or confined by the municipality, to escape or attempt to escape or to assist other prisoners to escape or attempt to escape from such custody or confinement.

b. Assisting Escape. It is unlawful for any person to assist, attempt to assist or offer to assist any person in custody of or confined under the authority of the municipality to escape from jail, place or confinement or custody.

CHAPTER THREE

PROPERTY

3-1-1 Destroying, Injuring, Removing, Tampering With or Defacing Property
3-1-2 Library Property
3-1-3 Scattering Trash, Rubbish
3-1-4 Advertising Matter
3-1-5 Petty Larceny, Conversion, Embezzlement, Fraud
3-1-6 Receiving Stolen Property
3-1-7 Shoplifting
3-1-8 Issuing Worthless Checks
3-1-9 Removal of Earth

3-1-1 DESTROYING, INJURING, REMOVING, TAMPERING WITH OR DEFACING PROPERTY. It is unlawful for any person to willfully, maliciously or wantonly destroy, injure, remove, tamper with or deface real property or improvements thereto or personal property, either public or private.

3-1-2 LIBRARY PROPERTY. It is unlawful for any person to carry away without authority, misuse, cut, write upon, injure, deface, tear or destroy any book, periodical, map, newspaper or any other property devoted to public library use.

3-1-3 SCATTERING TRASH, RUBBISH. It is unlawful for any person to throw or permit to be deposited or scattered upon any sidewalk, alley, street or public property or upon private property of another, any rubbish, waste, trash or other disposed material of any kind.

3-1-4 ADVERTISING MATTER. It is unlawful for any person to distribute, place or post in or upon public property any show card, poster, brochure, circular, handbill or other advertising devise, or to distribute, place or post in or upon private property, including utility poles, any such matter without the express consent of the owner.

3-1-5 PETTY LARCENY, CONVERSION, EMBEZZLEMENT, FRAUD. It is unlawful for any person to steal, convert, embezzle or acquire by fraud the property of another including any money, goods, chattels, bank notes, bonds, promissory notes, bills of exchange, other bills, orders, certificates or any books of account for or concerning money due or to become due and to be delivered. If the property stolen, converted, embezzled or acquired by fraud exceeds the value of $100.00, the matter should be referred to the district attorney.

3-1-6 RECEIVING STOLEN PROPERTY. It is unlawful to buy, procure, receive or conceal anything of value knowing the same to have been stolen, converted, embezzled or acquired by fraud.

3-1-7 SHOPLIFTING. It is unlawful for any person to willfully take possession of or conceal any merchandise valued at no more than $100.00 offered for sale with the intention of converting it without paying for it or to willfully alter any label, price tag or marking upon any merchandise, or transfer any merchandise from one container to another with the intention of depriving the merchant of all or part of the value of the merchandise. Any offense concerning merchandise valued at more than $100.00 shall be turned over to a higher authority.

3-1-8 ISSUING WORTHLESS CHECKS. It is unlawful to issue in exchange for anything of value with intent to defraud any check, draft, or order for the payment of money in the amount of $1.00 to $15.00 upon any bank or other depository knowing at the time of such issue that insufficient funds or credit exists with the bank or other depository for the payment in full by such check, draft or order. Any person convicted of issuing worthless checks shall be imprisoned for not more than 30 days or fined not more than $100.00 or receive both such imprisonment and fine. Offense of issuance of fraudulent check in excess of $25.00 shall be turned over to a higher authority.

3-1-9 REMOVAL OF EARTH. It is unlawful for any unauthorized person to move, distribute or take any earth, stone or other material from any public street way, alley, park or public ground.

CHAPTER FOUR

4-1-1 Lewd, Immoral or Obscene Acts
4-1-2 Window Peeping
4-1-3 Gambling
4-1-4 Aiding Illegal Activity
4-1-5 Marijuana, Possession Prohibited

4-1-1 LEWD, IMMORAL OR OBSCENE ACTS. The following acts are lewd, immoral, or obscene and their commission is unlawful:

a. Frequenting, loitering or being employed other than as a bartender or waitress in any establishment where alcoholic beverages are sold and engaging in the practice of or for the purpose of soliciting other to purchase alcoholic beverages.
b. Owning or operating any establishment where alcoholic beverages are sold and knowingly permitting the presence in such establishment of any person who violates the provisions of Section 4-1-1-a.
c. Uttering any abusive or obscene language whether addressed to or in the hearing of another person or making any obscene gesture to, at or about any person.
d. Prostitution, which means knowingly engaging in or offering to engage in sexual intercourse for hire.
e. Entering or remaining in a house of prostitution with intent to engage in sexual intercourse with a prostitute.
f. Knowingly hiring a prostitute to engage in sexual intercourse.
g. Knowing, establishing, owning, maintaining or managing a house of prostitution or participating in the establishment, ownership, maintenance or management thereof.
h. Knowingly permitting any place to be used as a house of prostitution.
i. Procuring a prostitute for a house of prostitution.
j. Inducing another to become a prostitute.
k. Living wholly or partly upon the earning of prostitution.
l. Knowingly soliciting a patron for a prostitute or for a house of prostitution.
m. Knowingly procuring a prostitute for a patron.
n. Knowingly procuring transportation for, paying for the transportation or, transporting a person within the municipality with the intention of aiding the person to engage in prostitution.
o. Knowingly being employed by a house of prostitution or to perform function with constitutes promoting prostitution.

p. Knowingly and intentionally exposing the primary genital area to plain view. Primary genital area means the mons pubis, penis, testicles, mons veneris, vulva or vagina.

4-1-2 WINDOW PEEPING. It is unlawful for any person to enter upon any private property and look, peer or peep into or be found loitering around or within the view of any window, door or other means of viewing into any occupied building other than his own household.

4-1-3 GAMBLING.

a. Engaging in Gambling. It is unlawful for any person to make a bet, enter or remain in a gambling place with intent to make a bet, participate in a lottery or play a gambling device or to conduct a lottery or possess facilities with intent to conduct a lottery.

b. Commercial Gambling. It is unlawful to participate in the earnings of or to operate a gambling place; or to receive, record, forward or possess facilities with the intent to receive or forward bets to offer to bet or become a custodian of anything of value bet or offered to be bet; or to conduct a lottery or possess facilities with the intent to conduct a lottery where both the consideration and the prizes are money; or to set up for use for the purpose of gambling, or operate any gambling device or collect the profits there from.

c. Permitting Use of Premises. It is unlawful for any person to knowingly permit any property owned or occupied by him or under his control to be used as a gambling place or to knowingly permit a gambling device to be set up for the purpose of gambling in a place under his control.

d. Dealing in Gambling Devices. It is unlawful to manufacture, commercially transfer or possess with the intent to commercially transfer any device with he knows evidences, purports to evidence or is designed to evidence a gambling purpose or any device which he knows is designed exclusively as a subassembly or essential part of such device including, but not limited to gambling machines, numbers, jars, punch boards or roulette wheels. Proof of possession of any device designed exclusively for gambling purposes other than in a gambling place and not set up for use is prima facie evidence of possession with intent to transfer commercially.

e. Permitted Lottery. Nothing in Section 4-1-3 shall be construed to apply to any sale or drawing of any prize at any fair held in this state for the benefit of any church, public library or religious society if such benefit shall be expended in this state for the benefit of such church, public library, religious society or charitable purpose. A lottery may be operated for the benefit of the organization or charitable pure only when the entire proceeds for the lottery go into the organization for charitable purposes and no part of such proceeds go to any individual member or employee thereof.

f. Nothing in this section shall be held to prohibit any motion picture theater from offering prizes of cash or merchandise or advertising

purposes in connection with such business whether or not any consideration other than monetary in excess of the regular price of admission in exacted for participation in drawing for prizes.

4-1-4 AIDING ILLEGAL ACTIVITY. It is unlawful to be found in any place where gambling or prostitution is being conducted with knowledge of such activity or to give or attempt to give any signal intended to give warning of the approach of any police officer to any person in or about any place where any illegal activity is being conducted.

4-1-5 MARAJUANA, POSSESSION PROHIBITED. It is unlawful for any person intentionally to possess marijuana unless it was obtained pursuant to a valid prescription or order of a practitioner while acting in the course of his professional practice or except as otherwise authorized by law.

a. "marijuana" means all parts of the plant Cannabis sativa L., whether growing or not, the seeds thereof, and every compound, manufacture, salt, derivative, mixture or preparation of the plant or its seeds. It does not include the mature stalks of the plant, hashish, tetrahydrocannabinols extracted or isolated from marijuana, fiber produced from the talks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture or preparation of the mature stalks, fiber, oil or cake or the sterilized seed of the plant which is incapable of germination.

b. "practitioner" means any physician, dentist, veterinarian or other person licensed to prescribe and administer drugs which are subject to the Controlled Substance Act of New Mexico.

c. Any person found guilty of violating this Section with respect to one (1) ounce or less of marijuana shall be punished by a fine not less than fifty dollars ($50.00) nor more than one hundred dollars ($100.00) and by imprisonment for not more than fifteen (15) days.

d. Second and subsequent offenses and possession of more than one (1) ounce of marijuana shall be turned over to a higher jurisdiction.

CHAPTER FIVE

MINORS

5-1-1 Abandonment of Children
5-1-2 Cruelty to Children
5-1-3 Enticement of a Child
5-1-4 Unlawful Assistance to Minors
5-1-5 Permitting of Loitering by Minors
~~5-1-6 Offenses by Minors~~
5-1-7 Failure to Parental Responsibility
5-1-8 Abandonment of Dangerous Objects
5-1-9 Sale, Offer of Sale, Delivery of Gift of Certain Glues

5-1-1 ABONDONMENT OF CHILDREN. It is unlawful for the parent, guardian, or custodian of a child to intentionally leave the child or abandon him under the circumstances whereby the child may suffer from neglect.

5-1-2 CRUELTY TO CHILDREN. It is unlawful for any parent, guardian or other person having care the custody of any child to cause or permit any child to be placed in a situation where the life or health of such child will be endangered, or to torture, cruelly confine or cruelly punish such child or to willfully or negligently expose such child to the inclemency of the weather.

5-1-3 ENTICEMENT OF CHLD. It is unlawful to persuade any child under the age of 16 years to enter a vehicle, building, room or secluded place with intent to commit an act which would constitute a crime under Article 9 of the Criminal Code or having possession of a child under the age of 16 years to commit such a crime.

5-1-4 UNLAWFUL ASSISTANCE TO MINORS. It is unlawful to assist minors to buy, procure, obtain, or be served any alcoholic beverages or to induce any person to sell, serve or deliver any alcoholic beverages to a minor by actual or constructive misrepresentation of any facts calculated to cause or by the concealment of any facts which are calculated to cause the person selling, serving or delivering such alcoholic beverages to sell to a minor or to any person for ultimate delivery to a minor.

5-1-5 PERMITTING OF LOITERING BY MINORS.

a. Presence in Liquor Establishments. It is unlawful for the owner or operator of any establishment serving alcoholic beverages to permit any person under the age of 21 years to attend, work in, frequent or loiter in or about such premises unless such person is accompanied by his parent or guardian.

~~5-1-6 OFFENSES BY MINORS.~~

a. ~~Curfew. It shall be unlawful for any minor under the age of 18 years to loiter, idle, wander, stroll, or play in or upon the public streets, highways, roads, alleys, parks, playgrounds or other public grounds or buildings, place of amusement and entertainment, vacant lots or other unsupervised places, between the hours of 10:00 p.m. and 4:00 a.m. provided, however, that the provisions of this section do not apply to a minor accompanied by his or her parents, guardian, or other adult person having the care and custody of the minor, or where the minor is on an emergency errand to legitimate business directed by his or her parent, guardian or other adult person having the care and custody of the minor. Each violation of the provisions of this sub-section shall constitute a separate offense. It shall be unlawful for the parent, guardian or other adult person having the care and custody of a minor under the age of 18 years to knowingly permit such a minor to loiter, idle, wander, stroll or play in or upon the public streets, highways, roads, alleys, parks, playgrounds or other public grounds or buildings, place of amusement and entertainment, vacant lost or other unsupervised places between the hours of 10:00 p.m. and 4:00 a.m. provided, however, that the provisions of this sub-section do not apply when the minor is accompanied by his or her parent, guardian or other adult person having the care and custody of the minor. Each violation of the provisions of the section shall constitute a separate offense.~~

b. ~~Duty of police to pick up minors. It shall be the duty of the Village Police to take into custody any child or children under the age of eighteen who shall be found unattended on such streets, alleys or in such public places, of the Village of Cuba, after the hours of 10:00 p.m. and to take such child or children into custody and notify the parent or guardian of such child or children of the fact of such custody.~~

5-1-7 FAILURE OF PARENTAL RESPONSIBILITY. It is unlawful for any parent, guardian or other adult person having the care and custody of a minor to knowingly permit such minor to violate the provisions of Section 5-1-4 or 5-1-5; 5-1-6; 2-1-13(c).

5-1-8 ABANDONMENT OF DANGEROUS OBJECTS.

a. Containers. It is unlawful to abandon, discard or keep in any place accessible to children any refrigerator, icebox, freezer, air-tight container, cabinet or similar container or a capacity of one and one-half cubic feet or more which is no longer in use without sealing or removing the doors or other entrances so as to make it impossible for any child to be imprisoned therein, or being the owner, lessee or operator of any premises to permit such articles to remain upon such premises in a condition whereby a child may be imprisoned therein.

b. Plastic Bags. It is unlawful for any person to abandon, expose, leave in any place accessible to children to permit upon premises under his control any plastic bag without first tearing the same sufficiently to render it no longer dangerous to a child.

5-1-9 DATE, OFFER FOR SALE, DELIVERY OR GIFT OF CERTAIN GLUES OR CEMENTS TO MNORS.

a. Prohibited Conveyance. It is unlawful to sell, offer for sale, deliver or give to any person under the age of 18 years any glue or cement commonly know as model airplane glue, plastic cement, household cement, cement or any other similar substance, if such glue, cement or substance contains one or more of the following volatile solvents: hexane, benzene, toluol, toluene, xylene, carbon tetrachloride, chloroform, ethylene dichloride, acetone, cyclohexanone, methyl ethyl ketone, methyl lisobutyl detone, amyl cetate, butyl acetate, ethyl acetate, tricresyl phosphate, butyl alcohol, ethyl alcohol, isopropyl alcohol, mehtylcellosolve acetate, trichloroethane or ether.

b. Exceptions. The provisions of section 5-1-9 a shall not apply with the glue or cement is sold, delivered or given simultaneously with and as part of a kit used for the construction of model airplanes, model boats, model automobiles, model trains or other similar models.

CHAPTER SIX

NUISANCES

6-1-1 Public Nuisances
6-1-2 Nuisance Declared
6-1-3 Notice of Nuisance
6-1-4 Complaint
6-1-5 Removal of Nuisance
6-1-6 Injunctions

6-1-1 PUBLIC NUISANCE. It is unlawful to commit public nuisance. Public nuisance consists of knowingly creating, performing or maintaining anything affective of health, safety, morals or welfare, or interferes with the exercise and enjoyment of public rights including the right to use public property.

6-1-2 NUISANCE DECLARED. In the interest of the inhabitant of the municipality it is necessary to prohibit the accumulation of junk, trash and refuse on property within the corporate limits or the municipality by declaring such accumulation a nuisance. The following are hereby declared to be a public nuisance:

a. Unoccupied premises. It shall be unlawful for any reason for any person to sweep, place or throw solid waste or other waste materials in or upon any sidewalk, street, alley or unoccupied premises.

b. Unsanitary premises. It shall be unlawful for any person to permit or cause to remain in or about his premises any solid waste, weeds, motor vehicles not in operating condition, waste water or any conglomeration of residue thereof, which emits odors or serves as a feeding or breeding place for flies, insects or rodents; and which in the opinion of the Sanitation Officer in unsanitary, or injurious to public health. The accumulation of building materials, pipes, lumber or boxes may be maintained on said premises if said accumulation is evenly piled and stacked for a reasonable length of time to be determined by the Sanitation Officer.

c. Hazardous premises. It shall be unlawful for any person to permit in or about his premises weeds, briars, brush or any other solid waste to become in any way hazardous or injurious to public health or to obstruct pedestrian and vehicular traffic.

d. Accumulation of solid waste. It shall be unlawful for any person to allow any solid waste to accumulate upon premises, owned, leased, rented or occupied by him during intervals between collection

thereof, except in the manner herein provided. It shall be unlawful to deposit any solid waste in or upon the street, alleys, sidewalks, gutters, curbing, storm sewers, parkways or vacant lots within the municipality, except in the manner and in the receptacles or container as provided in (e) of this section.

e. Solid waste receptacles. All solid waste receptacles shall be maintained in a clean and sanitary condition by the owner of person using the receptacle and such receptacles shall be located only in such places as shall be readily acceptable for removing and emptying the same, but shall not be placed in such place or position as to constitute a nuisance or obstruction to vehicular or pedestrian traffic.

f. Outdoor Vehicle Storage – Prohibited Acts – Exceptions.

   a. It is unlawful for any person, firm or corporation to store on, place on, or permit to be stored on, placed on or allowed to remain on any occupied or unoccupied land within the municipal limits, a dismantled, partially dismantled or inoperative motor vehicle, or any parts of a motor vehicle, except in areas where such activity is within the contemplated purposes of duly licensed businesses and are kept in a wholly enclosed garage or structure.

   b. Exceptions. Any person, being owner or tenant, may store, permit to be stored or allow to remain upon his premises, any dismantled, partially dismantled or inoperative motor vehicle, or parts thereof, for a period not to exceed one week if such motor vehicle is registered in his name; and provided further that any such owner or tenant may, in the event or hardship, secure permission from the municipality to extend such period of time.

   c. Definitions. As used in this section the following terms shall have the following meanings:

      1. "motor vehicle" means any wheeled vehicle which is self-propelled or intended to be self-propelled.
      2. "inoperative" or "inoperable motor vehicle" means any motor vehicle which by reason of dismantling, disrepair or other cause is incapable of being propelled under its own power.
      3. "dismantled or partially dismantled vehicle" means any motor vehicle from which some part or parts which are ordinarily a component thereof have been removed or are missing.

   d. This section shall be construed as being supplementary to any section of this Ordinance relation to rubbish, litter, refuse, and shall not be construed to permit the parking or placing of dismantled, partially dismantled or inoperable motor vehicles on any pubic street.

6-1-3 NOTICE OF NUISANCE. Any municipal police officer, upon observing any violation of this chapter, shall issue a notice directed to the owner of record of the property on which the nuisance occurs, or the occupant or tenant to the property, or both. The notice shall describe the violation and shall establish a reasonable time limit for abatement thereof by the owner or occupant or tenants, which limit shall not be less than two (2) days or more than (30) days after service of the notice. The notice may be served either personally or by registered mail at the owner's or occupants last known address.

6-1-4 COMPLAINT. In the event the owner or occupant of the property where the nuisance violation to this chapter exists, has failed, within the prescribed time, to abate the nuisance, then any municipal police officer, shall file a complaint charging violation of this chapter with the municipal court demanding that the owner of the property, or the occupant thereof, or both, be held to answer to the court for the violation of this chapter.

6-1-5 REMOVAL OF NUISANCE. In the event that a person is convicted of violating this chapter and still refuses to remove the junk trash or refuse, the municipality may enforce this section in any manner consistent with the law. Should the person refuse or fail to pay the assessment, the municipality shall collect such assessment a provided by law.

6-1-6 INJUNCTIONS. The Chief of Police, when a nuisance exists as set forth in this chapter, may maintain a complaint in the name of the municipality, perpetually, to enjoin all persons from maintaining or permitting the nuisance and the abate the same.

CHAPTER SEVEN

ANIMAL CONTROL

7-1-1 Definitions
7-1-2 Administration of Ordinance
7-1-3 Rabies Control
7-1-4 License Required
7-1-5 Prohibited Activities
7-1-6 Impoundment
7-1-7 Kennels
7-1-8 Wild and Exotic Animals
7-1-9 Domestic Livestock
7-1-10 Penalty

7-1-1 DEFINITIONS. As used in this article, the following words and terms, unless the context indicates a different meaning, have the meaning given herein.

a. ANIMAL: Any vertebrate excluding man.
b. ANIMAL SHELTER: Any establishment authorized by the municipality the care and custody or impounded animals.
c. BITE: A puncture or tear of the skin inflicted by the teeth of an animal.
d. MUNICIPALITY: That area lying within the incorporated boundaries.
e. CHIEF OF POLICE: The Chief of Police of the municipality or his or her designated representative.
f. EXOTIC ANIMAL: An animal which is rare or different from ordinary domesticated animals and is not indigenous to the State of New Mexico.
g. NUISANCE: Means, but is not limited to, disturbing the peace, emitting noxious or offensive odors, or otherwise endangering or offensive to the environment to the municipality.
h. KEEPER: Any person who owns, harbors, keeps, or has control or custody of an animal for more than six days, provided that this term shall not apply to veterinarians or kennel owners temporarily maintaining on their premises animals owned by others.
i. KENNEL: Any establishment or premises where dogs or cats are board or kept.

j. PERSON: Any individual, household, firm, partnership, corporation, society, association, and every agent and employee thereof.

k. QUARANTINE: To detain or isolate an animal suspected of being infected with rabies.

l. RUNNING AT LARGE: An animal off the premises of the keeper under the direct control of a competent person. Direct control means connected by a secure leash not over six feet in length or some other equivalent means of direct control.

m. STRAY OR ESTRAY: Any animal that has no identifiable keeper.

n. VACCINATION: The vaccination of an animal with an anti-rabies vaccine approved by the Secretary of the Health and Environment Department and administered under the supervision of a veterinarian.

o. VETERINARIAN: Any veterinarian licensed in the State of New Mexico

p. VICIOUS ANIMAL: Any animal which commits an unprovoked attack upon a person on private property, or which terrorizes or attacks a person on public property or in a public place.

q. WILD ANIMAL: Any animal which is wild by nature and cannot normally be domesticated or controlled.

7-1-2 ADMINISTRATION OF ORDINANCE.

a. RESPONSIBILITY: The Chief of Police is responsible for the administration of this ordinance. Reasonable rules and regulations shall be prescribed by the Governing Body to carry out the intent and purpose of this ordinance.

b. ENFORCEMENT: The Chief of Police or his or her designated agent shall have the authority to issue citation for violating of this ordinance and to perform such other duties as are prescribed herein.

7-1-3 RABIES CONTROL.

a. ANNUAL VACCINATION: It is the duty of every person keeping a dog or cat over the age of three months to have such animal vaccinated against rabies. All dogs and cast must be revaccinated annually. Every veterinarian who vaccinates a dog or cat here under shall issue to the owner or keeper of the animal a numbered vaccination certificate and tag. The certificate shall contain the name and address of the owner or keeper of the animal, a description of the animal vaccinated, the type of vaccine used, the date of vaccination, and the expiration date of the period of immunity.

b. VACCINATION CERTIFICATE: Every person who keeps a vaccinated dog or cat must exhibit his copy of the certificate of vaccination upon the demand of any person charged with the enforcement of this ordinance.

c. HARBORING UNVACCINATED ANIMALS: It is unlawful for any person to keep a dog or cat which has not been vaccinated against rabies as provided herein.

d. REPORTING RABIES SUSPECTS: Every veterinarian who makes a clinical diagnosis of rabies and every person who suspects rabies in a domestic or wild animal shall immediately report the same to the Local District Health Office of the Health Services Division of the Health and Environment Department stating precisely when and where such animal was seen and if possible where it may be found.

e. HUMAN EXPOSURE TO RABIES: Any person with knowledge that an animal has bitten a human being shall immediately report the incident to the animal shelter and to the Local District Health Office. Every physician or other health care professional who treats a person for such bite shall report such treatment to the Local District Health Office within twelve hours of such treatment. Such treatment must specify the name a precise location of the person bitten.

f. QUARANTINE OF RABIES SUSPECTS: Any dog or cat which has bitten a person shall be confined and observed for a period of ten (10) days from the date of the bite at the animal shelter, a veterinary hospital, or an approved kennel; provided, however, that if the animal has a current vaccination for rabies and the area involved is not under quarantine for rabies, the animal control officer may permit quarantine of such animal at the owner's home. Home confinement shall not be permitted unless the premises have been inspected and approved for such purpose by the animal control officer.

g. ENFORCEMENT OF THE QUARANTINE: It is unlawful to remove any dog or cat from enforced quarantine during the period of confinement without consent of the responsible animal control officer.

h. WILD ANIMAL BITES: Bites inflicted by animals other than dogs and cats must be reported to and discussed with the Local District Health Office for proper disposition.

7-1-4 LICENSE REQUIRED.

a. LICENSE: Every keeper of any dog or cat three months of age or older shall procure a license. License fees shall be paid annually not later than March 1 of each year and the full amount shall be paid for any fraction of the licensing year. Upon collection of the license fee by the municipality, a dated and numbered certificate shall be issued stating the name, address of the owner, rabies tag number, and the animal's description.

b. PROOF OF RABIES VACCINATION: No dog or cat shall be licensed without proof of rabies vaccination as provided in this ordinance.

c. CERTIFICATES AND TAGS: The current municipality's license and rabies tags shall be affixed to the licensed dog at all times except when the dog is being kept in an approved kennel, veterinary hospital or training class. The original license and tag and the rabies certificate and tag of all dogs and cats shall be retained by the owner and shall be available for inspection by any person charged with the enforcement of this ordinance.

d. LOSS OF LICENSE TAG: In the event the original license tag is lost, the keeper shall obtain a duplicate tag from the municipality at the cost of $1.00.

e. FEE: The annual license fee shall be $1.00 for a neutered dog or cat and shall be $2.00 for a non-neutered dog or cat. Guide dogs are free.

7-1-5 PRHIBITED ACTIVTIES.

a. FALSE AND STOLEN DOCUMENTS: It shall be unlawful for any person to transfer any license or rabies tag from one animal to another or to make use of a stolen, counterfeit, or forged license, certificate or tag.

b. ANIMALS RUNNING AT LARGE: It shall be unlawful for any keeper of a dog or cat or other pet animal to permit such animal to run at large.

c. NUISANCE: It is unlawful for a keeper to allow any animal to persistently bark, howl, or make noise or to be kept or maintained in such a manner as to disturb or otherwise endanger the health and welfare of the inhabitants of the neighborhood.

d. CONFINEMENT DURING ESTRUS: Any female dog or cat in the stage of estrus (heat) shall be confined to a building or other secure enclosure so that contact with a male animal of the same species will be prevented except for intentional breeding purposes. Keepers who do not comply with this section may be required to place such animal in a boarding kennel or veterinary hospital at the keeper's expense.

e. PHYSICAL ABUSE: It is unlawful for any person to maliciously kill, maim, torture, mutilate, burn, or to cruelly drive or work any animal.

f. ABONDONMENT OF ANIMALS: It is unlawful to abandon any animal within the municipality.

g. POISONING: It is unlawful to poison domestic animals or to distribute poison or toxicants in any manner with the intent of so poisoning.

h. CARE AND MAINTENANCE: It is unlawful for any keeper to fail to provide an animal with proper food, drink and shelter, or to carry an animal in or upon any vehicle in a cruel or inhumane manner.

i. ANIMAL FIGHTS: It is unlawful to cause, instigate, or promote any fight in which two or more animals are engaged for the

purpose of injuring, maiming or destroying themselves or another animal.

j. PREMIUMS AND NOVELTIES: It is unlawful to color, stain or dye any chicken, duckling or fowl.

k. TURTLES: It is unlawful to offer for sale, barter or give away turtles except in conformance with appropriate federal regulations.

l. VICIOUS ANIMAL: It is unlawful for any person to keep or harbor any vicious animal.

7-1-6 IMPOUNDMENT.

a. ANIMAL SHELTER: A suitable animal shelter shall be provided for the purpose of boarding and caring for animals impounded under the provision of this ordinance.

b. IMPOUNDING ANIMALS: Animals kept in violation of this ordinance and stray animals shall be taken into custody by an animal control officer or other designated official and thereupon impounded.

c. RIGHT OF ENTRY: Animal control officers, in performance of their duties may enter upon private property, except a private residence, for the purpose of apprehending animals running at large and stray animals.

d. REGISTER: The animal control officer, upon impounding or receiving any animal, shall register such animal by entering the breed, color and sex of the animal and the time and place such animal was apprehended into the registry kept for this purpose.

e. NOTICE TO OWNER: If the keeper of an impounded animal is known, he or she must be immediately notified. If the keeper of the animal is not known, notice of the impoundment shall be posted in a conspicuous place at the animal shelter for a period of 10 days.

f. RIGHT TO REDEEM: The keeper of any animal which has been impounded under the provision of this ordinance shall have the right to redeem the animal upon payment of the impounding fees, care and feeding charges, veterinary charges, and such other costs as set by the Chief of Police or the animal may be humanly destroyed.

g. TIME FOR REDEMPTION: All impounded animals shall be redeemed within 30 days after impoundment. Any animal not redeemed within the required period shall become the property of the animal shelter and may be placed for adoption upon payment to the license fee; impoundment fees, care and feeding charges, veterinary charges and such other costs as set by the Chief of Police or the animal may be humanely destroyed.

h. DISPOSITITON OF IMPOUNDED ANIMAL BEING HELD ON COMPLAINT: If a complaint has been filed in the municipal court of the municipality against the keeper of an impounded animal for a violation of this ordinance the animal shall not be

released except upon order of the court which also may direct the owner to pay any penalties for violation of this ordinance in addition to all impounding fees, care and feeding charges and veterinary fees.

7-1-7 KENNELS.

a. RESTRICTIONS: No person, group of persons, or business entity in the municipality may own, keep or harbor more than three dogs of three months of age or older, more than three cats of three months of age or older, or more than a total of five dogs and cats in any combination more than three months of age or older without obtaining a kennel license.

b. LICENSE REQUIRED: Persons operating a kennel must obtain a nontransferable kennel license, which shall be posted in a conspicuous place in the kennel. A kennel license shall expire on December 31 of each year and shall be renewed by February 1 of the following year. No kennel license may be issued without an inspection certificate issued by the Chief of Police. The annual kennel license fee shall be $2.00.

c. FACILITIES AND CARE APPLICABLE TO KENNEL LICENSE: Animal Housing facilities must be structurally sound and shall be constructed of non-toxic materials. The facility shall be maintained in good repair and kept clean and sanitary at all times so as to protect animals from disease and injury. Animals maintained in pens, cages or runs for a period exceeding 24 hours must be provided with adequate space to prevent overcrowding and to permit an adequate exercise according to the requirements of the species. Indoor housing shall be provided with adequate ventilation and temperature control to provide for the animals comfort and health. Sufficient lighting shall be provided by either natural or artificial means. If outside housing is provided, it must be sufficient to protect the animal from sunlight, rain, snow, or cold weather that may be detrimental to the animal's health. Provisions shall be made for the removal and proper disposal of animal and food waste, bedding, dead animals and debris. Disposal facilities shall be provided and operated so as to minimize vermin infestation, odor and disease hazards. Except where indicated for health, animal shall be provided clean, fresh, sufficient and wholesome food and water. Food and water containers must be kept clean. Every animal kept in a kennel must be observed daily and diseased or injured animals must be provided with veterinary care.

d. INSPECTION: The Chief of Police or his agent shall be permitted to enter, at any reasonable time, for the purpose of inspecting or re-inspecting any kennel or pet shop to determine compliance with this ordinance.

e. VIOLATIONS, SUSPENSIONS AND REVOCATIONS: A kennel license may be denied, suspended or revoked by the Chief of Police upon a determination that the operator of the kennel or pet store is in violation of this ordinance. An opportunity for a hearing on any denial, suspension, or revocation shall be provided at a time and place determined by the Governing Body. Bases upon the record of such hearing the Governing Body shall make a finding and shall sustain, modify, or rescind the action considered at the hearing. Any owner of a kennel or pet store whose license has been suspended or revoked may make application for reinstatement of the license. If, following inspection, the applicant has complied with the requirements of this ordinance, the license shall be reinstated.

f. EXCEPTIONS: This section shall not apply to and shall not be construed to require a kennel license for:

a. A veterinary hospital or clinic operated by a licensed veterinarian.

b. A bona fide research institution using animals for scientific research

c. A publicly owned animal control center or shelter.

d. A bona fide animal shelter operated by an organized humane society.

7-1-8 WILD AND EXOTIC ANIMALS.

a. KEEPING THE FOLLOWING ANIMALS PROHIBITED:

1. Wild animals kept in such numbers or in such a manner as to constitute a likelihood of harm to the animals themselves or to other animals, or to human beings, or to the property of human beings or which constitute a public or private nuisance.

2. Exotic or wild animals prohibited by federal or New Mexico law or regulation.

b. PERMIT REQUIRED: No person shall receive, purchase, own or keep wild or exotic animals without first applying for and receiving from the Governing Body and from the State of New Mexico Department of Game and Fish a permit to do so. The applicant must provide evidence of knowledge and facilities for the care and feeding of the animals involved. The Chief of Police is permitted to enter the premises of any permittee hereunder at any reasonable time for the purpose of inspection or re-inspection to determine compliance with this ordinance. The Governing Body or the Department of Game and Fish may deny, revoke or suspend a permit for failure to comply with this ordinance. The fee for such a permit shall be $2.00 and shall be renewed annually. A separate permit shall be required for each species of wild or exotic animal.